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Virginia Expungement & Record Sealing Agent Training Reference

A complete operational knowledge base for clearing criminal records in Virginia: the existing expungement statute (§ 19.2-392.2, non-convictions) and the new automatic and petition-based sealing system (Chapter 23.2, effective July 1, 2026) — eligibility, waiting periods, exclusions, procedure, and record requests.

Prepared for	LegalEase / Expungement.ai — Wilma assistant
Coverage	Commonwealth of Virginia (circuit court of conviction/charge; State Police hold the record)
Primary statutes	Expungement: § 19.2-392.2 (non-convictions). Sealing: Ch. 23.2, §§ 19.2-392.5 to .17 (eff. 7/1/2026)
Key effective date	The comprehensive sealing system (automatic + petition) takes effect JULY 1, 2026
Controlling law	HB 2113 / SB 1339 (2021), amended by SB 1466 / HB 2723 (2025)
Document type	Internal training / retrieval reference — not legal advice

VERIFY BEFORE RELYING

Virginia is in the middle of a historic transition and the agent **MUST** track the effective date. Until now, Virginia cleared adult records **ONLY** by expungement under § 19.2-392.2, which reaches **NON-convictions** (acquittals, nolle prosequi, otherwise-dismissed charges) plus actual-innocence and absolute-pardon cases — **NOT** ordinary convictions or deferred-and-dismissed dispositions. A comprehensive new **SEALING** system (automatic and petition-based, covering many convictions) was enacted in 2021 and amended in 2025, but it does **NOT** take effect until **JULY 1, 2026**. Two terms also differ: **EXPUNGEMENT** (removal) vs. **SEALING** (restricted access). The agent must confirm whether the sealing system is yet operational for the user's date and county, and must not promise conviction relief that the law does not yet provide.

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How the agent should use this document

Virginia has two regimes and the agent routes first by DATE, then by disposition. **Regime 1 — Expungement (§ 19.2-392.2), available now.** A petition to the circuit court to remove police and court records, but ONLY for non-convictions: acquittal, nolle prosequi, or otherwise dismissed; plus records vacated by a writ of actual innocence or covered by an absolute pardon. Convictions and most first-offender / deferred dismissals are NOT expungeable. **Regime 2 — Sealing (Chapter 23.2), effective July 1, 2026.** A mixed system of AUTOMATIC sealing (misdemeanor non-convictions, nine misdemeanor conviction types, marijuana, deferred dismissals for underage alcohol/marijuana) and PETITION-BASED sealing (many misdemeanors and Class 5/6 felonies, plus larceny felonies under § 18.2-95), with a long exclusion list. The agent should (1) check the date; (2) for non-convictions, use § 19.2-392.2 expungement now (and automatic sealing once effective); (3) for convictions, the petition-sealing system from 7/1/2026; and (4) screen the exclusion list and the felony-history bars.

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Statutory shorthand used throughout

§ 19.2-392.2	EXPUNGEMENT of police/court records — non-convictions (in effect NOW)
§ 19.2-392.2(I)/(J)	Expungement for absolute pardon (I) and writ of actual innocence (J)
Ch. 23.2 / §§ 19.2-392.5+	SEALING system — automatic & petition (EFFECTIVE JULY 1, 2026)
§ 19.2-392.7	AUTOMATIC sealing categories (non-convictions, 9 misd. types, marijuana)
§ 19.2-392.12	PETITION sealing of convictions / deferred dismissals (eff. 7/1/2026)
§ 19.2-392.12:1	Petition sealing where automatic sealing did not occur (eff. 7/1/2026)
“ancillary matter”	Probation/parole violation, contempt, failure to appear, bail appeal — sealable with the charge
State Police (VSP) signature/date review zone	Virginia State Police Central Criminal Records Exchange (CCRE) — holds the record

1. Eligibility rules

Two regimes, routed by date and disposition.

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Regime 1 — Expungement (§ 19.2-392.2), available now

A petition in circuit court to expunge police and court records, limited to:

- **Acquittal** (found not guilty).
- **Nolle prosequi** (Commonwealth dropped the charge).
- **Otherwise dismissed** — but courts read this narrowly: a charge dismissed after a finding of facts sufficient for guilt or a deferred disposition (e.g., first-offender drug dismissal under § 18.2-251) is generally NOT “otherwise dismissed” and not expungeable (Commonwealth v. Dotson).
- **Absolute pardon** for innocence (§ 19.2-392.2(I)).
- **Writ of actual innocence** — a vacated conviction (§ 19.2-392.2(J)).
- Cases where the person's identity was used by another (identity theft).

Regime 2 — Sealing (Chapter 23.2), effective July 1, 2026

A mixed automatic/petition system far broader than expungement:

Automatic sealing (§ 19.2-392.7) — no filing:

- Misdemeanor NON-convictions; all marijuana-possession records (non-convictions, deferred dismissals, and convictions under former § 18.2-250.1); deferred dismissals for underage alcohol and marijuana.
- NINE enumerated misdemeanor CONVICTION types, sealed automatically 7 years after conviction with no new convictions (excluding traffic infractions).
- Traffic infractions automatically sealed after 11 years; and a clean-record sweep — a person with no convictions/deferred dismissals and no arrest in the last 3 years has all non-conviction records sealed.

Petition-based sealing (§ 19.2-392.12 / .12:1):

- A person convicted of, or who had deferred-and-dismissed, a **misdemeanor**, a **Class 5 or 6 felony**, or a larceny felony under § 18.2-95 may petition the circuit court to seal it (subject to the exclusion list and felony-history bars).
- An **ancillary matter** (probation/parole violation, contempt, failure to appear, bail appeal) tied to the charge may be sealed with it — a key 2025 fix (e.g., a grand-larceny conviction and a later probation-violation can be sealed together).
- Petition sealing also backstops automatic sealing where the automatic process did not reach a record.

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AGENT GUIDANCE

Check the DATE first. Before July 1, 2026, only § 19.2-392.2 expungement (non-convictions) is available — there is no conviction relief yet. From July 1, 2026, the Chapter 23.2 sealing system opens automatic and petition pathways for many convictions.

Use the right word: EXPUNGEMENT removes the record; SEALING restricts access (police/courts still see it). A denied sealing petition does not bar a later § 19.2-392.2 expungement, and vice versa.

2. Waiting periods

Expungement of non-convictions has no waiting period. The sealing system's waits (from July 1, 2026) run from conviction or release, whichever is later, and require a clean record during the period.

Pathway / matter	Mechanism	Waiting period	Notes
Acquittal / nolle prosequi / otherwise dismissed	Expungement (§ 19.2-392.2)	None	Available now
Actual innocence / absolute pardon	Expungement	None	§ 19.2-392.2(I)/(J)
Misdemeanor non-conviction	Auto-seal (7/1/2026)	None	Automatic
Marijuana records	Auto-seal	None	Incl. former § 18.2-250.1
9 enumerated misdemeanor convictions	Auto-seal	7 years	No new conviction in period
Traffic infractions	Auto-seal	11 years	Criminal traffic excluded
Petition: misdemeanor conviction / deferred	Petition (§ 19.2-392.12)	7 years	No new conviction (non-traffic)
Petition: Class 5/6 felony or § 18.2-95 larceny felony	Petition	10 years	From conviction/release, later

In addition to the per-offense wait, the petition system imposes felony-history bars that look at the **WHOLE** record: the petitioner must (a) never have been convicted of a Class 1 or 2 felony or any felony punishable by life; (b) not have been convicted of a Class 3 or 4 felony within the past 20 years; and (c) not have been convicted of any other felony within the past 10 years of the petition. The misdemeanor petition wait is 7 conviction-free years; the felony (Class 5/6 or larceny) wait is 10 years from conviction or release, whichever is later.

AGENT GUIDANCE

For petition sealing, apply BOTH the per-offense wait (7 yrs misdemeanor / 10 yrs felony) AND the whole-record felony-history bars (never Class 1/2 or life; no Class 3/4 in 20 yrs; no other felony in 10 yrs). A later disqualifying felony defeats the petition.

Expungement of non-convictions has no wait — a person acquitted yesterday can file today.

3. Disqualifying / ineligible offenses

Expungement's main limit is that it does not reach convictions or deferred dismissals at all. The sealing system has an extensive exclusion list.

Not reachable by expungement (§ 19.2-392.2)

- **Any conviction** (other than one vacated by actual innocence or covered by an absolute pardon).
- **Deferred / first-offender dismissals** after a finding of facts sufficient for guilt (e.g., § 18.2-251 drug dismissals) — not “otherwise dismissed” under Dotson.

Excluded from sealing (§ 19.2-392.12, from 7/1/2026)

Sealing is barred for Class 1, 2, 3, and 4 felonies and many unclassified felonies, and the statute specifically excludes (among others):

- Certain DUI / vehicular offenses named in the statute (§§ 18.2-36.1, 18.2-36.2, 18.2-51.4, 18.2-51.5, 18.2-57.2, 18.2-266, 46.2-341.24).
- **Sex crimes** and offenses requiring registration; **sex trafficking**.
- **Violent felonies; felonies involving the use of a firearm**.
- **Assault/abuse of a family or household member** (domestic) and **protective-order violations**.
- **Hate crimes; animal cruelty; election-law** offenses; **date-rape-drug** offenses.
- **Not guilty by reason of insanity** dispositions; **dangerous/vicious dog** offenses.

Felony-history and structural bars

- Never a Class 1/2 felony or a life-punishable felony; no Class 3/4 felony in the past 20 years; no other felony in the past 10 years (Section 2).
- **Same-date rule**. A charge cannot be sealed by petition if it was finalized on the same date as a conviction or deferred dismissal that is itself ineligible for sealing.
- **Out-of-state / federal records** are not reachable by Virginia relief.

VERIFY BEFORE RELYING

The § 19.2-392.12 exclusion list runs to roughly 19 provisions and the felony-history bars look at the entire record; the 2025 amendments (SB 1466 / HB 2723) both added exclusions and added the ancillary-matter relief, and none of the sealing system is operational before July 1, 2026. The agent must map each offense to its Code section, apply the exclusion list and the same-date rule, and confirm the law is in effect before declaring a conviction sealable.

AGENT GUIDANCE

For convictions, screen against the long exclusion list (DUI, sex, violent, firearm, domestic, protective order, hate crime, etc.) AND the felony-history bars before indicating sealing is possible — and remember none of it works before 7/1/2026.

For the present (pre-7/1/2026), be honest that Virginia offers NO conviction relief by expungement; only non-convictions can be cleared right now.

4. Case outcome rules

Outcome and date drive the mechanism. This table is the agent's primary routing logic for Virginia.

Case outcome	Mechanism	Route	When / condition
Acquittal / nolle prosequi / otherwise dismissed	Expungement	Petition (circuit court)	Available now; no wait
Actual innocence / absolute pardon	Expungement	Petition	Now; vacated/pardoned
Deferred / first-offender dismissal (e.g., 18.2-251)	— / Sealing	Not expungeable; seal from 7/1/2026	Per Dotson
Misdemeanor non-conviction	Auto-seal	Automatic	From 7/1/2026
Marijuana possession	Auto-seal	Automatic	From 7/1/2026
9 enumerated misdemeanor convictions	Auto-seal	Automatic, 7 yrs	From 7/1/2026
Other misdemeanor conviction	Sealing	Petition, 7 yrs	From 7/1/2026
Class 5/6 felony or 18.2-95 larceny felony	Sealing	Petition, 10 yrs	From 7/1/2026
Class 1-4 felony / excluded offense	—	Not eligible	Pardon route only

Effect of relief: an EXPUNGEMENT removes the police and court records of a non-conviction. SEALING (from 7/1/2026) restricts access — records are removed from public view and most background checks but remain available to courts, law enforcement, and certain government entities; a sealed marijuana-possession offense and automatically sealed categories are handled without a court order. A denied sealing order is without prejudice and does not bar a later § 19.2-392.2 expungement; conversely, getting a sealing order does not bar seeking expungement.

AGENT GUIDANCE

State the mechanism and its effect precisely: expungement removes a non-conviction; sealing (from 7/1/2026) restricts access to many convictions but is not erasure and is still visible to police and courts. If a deferred/first-offender dismissal is involved, set expectations: it is generally not expungeable now, but may be sealable once the new system is live.

5. Required forms

Expungement uses an existing circuit-court petition and a State Police fingerprint step. The sealing system's forms are being developed by the Office of the Executive Secretary of the Supreme Court of Virginia for the July 1, 2026 launch.

Expungement (§ 19.2-392.2) — available now

- **Petition for Expungement** filed in the circuit court of the city/county where the charge was disposed, citing § 19.2-392.2 and identifying the charge, disposition, and arrest data.
- **Fingerprint card / State Police processing:** the petitioner is fingerprinted and the State Police forward the petition, fingerprints, and a copy of the criminal-history record to the court.
- **Proposed Order of Expungement** for the court's signature.
- The Commonwealth's Attorney is served and may object; the court applies the “manifest injustice” standard for misdemeanors and certain cases.

Sealing (Chapter 23.2) — from July 1, 2026

- **Petition for Sealing** under § 19.2-392.12 (or .12:1) filed in the circuit court, identifying the charge/conviction, any ancillary matter, and the statutory basis. No court fees or costs are charged for the petition.
- Automatic sealing requires NO form — the State Police and courts process eligible records.
- Forms will be published by the Office of the Executive Secretary; verify the official form at filing time.

AGENT GUIDANCE

Right now, use the § 19.2-392.2 expungement petition with the fingerprint/State Police step for non-convictions. Build in service on the Commonwealth's Attorney.

For sealing, wait for the OES forms and the 7/1/2026 effective date; automatic sealing needs no filing, and petition sealing carries no court fee.

6. Filing instructions

Expungement sequence (available now); the sealing-petition sequence parallels it from July 1, 2026:

- 1 Get the record.** Request your Virginia State Police (CCRE) criminal history and confirm the charge, the disposition, and the arrest/disposition dates.
- 2 Confirm eligibility.** For expungement, the disposition must be a non-conviction (acquittal, nolle prosequi, otherwise dismissed) or an actual-innocence/absolute-pardon case — not a deferred dismissal. For sealing (from 7/1/2026), check the offense type, the wait, the exclusion list, and the felony-history bars.
- 3 Prepare the petition and proposed order** in the circuit court of the city/county where the charge was disposed, citing § 19.2-392.2 (expungement) or § 19.2-392.12 (sealing).
- 4 File and get fingerprinted.** For expungement, file the petition and obtain a fingerprint card; the State Police forward the petition, prints, and criminal-history copy to the court.
- 5 Serve the Commonwealth's Attorney,** who may consent or object; sealing petitions and the Commonwealth's responses are maintained under seal by the clerk.
- 6 Hearing / standard.** For expungement the court applies the statutory standard (often “manifest injustice” for misdemeanors); for sealing, the court enters an order if the statutory conditions are met. A denial is without prejudice.
- 7 Order to State Police.** On a granted order, the clerk forwards an electronic copy/notification to the State Police, which expunges or seals the record. Keep a certified copy of the order.

AGENT GUIDANCE

Venue is the circuit court of the city/county where the charge was disposed — even for a General District Court case, expungement/sealing is handled in the circuit court.

The fingerprint + State Police step is mandatory for expungement and is the most common source of delay; start the criminal-history request early.

7. Court-specific quirks

- **The July 1, 2026 cliff.** The entire sealing system (automatic + petition) is enacted but NOT operational until 7/1/2026; before then, only § 19.2-392.2 expungement (non-convictions) exists.
- **Expungement ≠ sealing.** Expungement removes a non-conviction; sealing restricts access to many convictions. They are separate statutes with separate standards, and one does not bar the other.
- **“Otherwise dismissed” is narrow.** Under Commonwealth v. Dotson, a deferred/first-offender dismissal after a finding of guilt is NOT expungeable — a frequent misunderstanding.
- **Everything goes to circuit court.** Even district-court charges are expunged/sealed by the circuit court of that city/county.
- **Fingerprint + State Police step.** Expungement requires fingerprinting and State Police processing of the petition and criminal-history copy.
- **Ancillary matters (2025).** Probation-violation, contempt, failure-to-appear, and bail-appeal matters can now be sealed along with the underlying charge — a major fix.
- **Felony-history bars.** Petition sealing looks at the whole record (Class 1/2/life ever; Class 3/4 in 20 yrs; any felony in 10 yrs), not just the target offense.
- **No fee for sealing petitions;** the 2025 law also removed the right to appointed counsel for indigent sealing petitioners.

AGENT GUIDANCE

Always anchor advice to the date: pre-7/1/2026 = expungement of non-convictions only; on/after = the full sealing system. Verify the system is live before promising conviction relief.

Correct the Dotson misconception early: a first-offender drug dismissal is not expungeable now, though it may be sealable once the new law is in effect.

8. Fee information

Item	Amount	Note
Expungement petition (§ 19.2-392.2)	Circuit court filing fee	Plus a fingerprinting fee
Sealing petition (§ 19.2-392.12)	\$0	No court fees or costs (from 7/1/2026)
Automatic sealing	\$0	No filing
Fingerprinting (expungement)	Local agency fee	Required for State Police processing
Virginia State Police criminal history	VSP fee	To confirm record before filing
Attorney fees (if represented)	Varies	Not required; legal-aid clinics assist (no appointed counsel for s

Costs differ by regime. An expungement petition carries the circuit-court civil filing fee plus a local fingerprinting fee. The new sealing system charges NO court fees or costs for a petition, and automatic sealing is free. The realistic baseline expense in both regimes is the Virginia State Police criminal-history request used to confirm the record. Note the 2025 law removed the right to court-appointed counsel for indigent sealing petitioners, so free help comes from legal-aid organizations and clinics rather than appointed counsel.

AGENT GUIDANCE

Tell users sealing petitions are free of court costs (from 7/1/2026) and automatic sealing costs nothing; the expungement petition has a filing fee plus fingerprinting.

Point indigent users to legal-aid clinics — the 2025 law removed appointed counsel for sealing petitions, so there is no court-appointed lawyer for these.

9. Criminal history (State Police) request process

Confirming the record first establishes the disposition (critical for the expungement vs. sealing routing) and the dates that start any waiting period.

A. Statewide history — Virginia State Police (CCRE)

- The Virginia State Police Central Criminal Records Exchange (CCRE) maintains the Virginia criminal history; a person may request their own record for a fee.
- The State Police also process expungement petitions (fingerprints + criminal-history copy to the court) and, from 7/1/2026, validate and seal records on a court's electronic order.

B. Court records — circuit court of the city/county

- The circuit court clerk holds the case file and is where both expungement and sealing petitions are filed; district-court charges are handled by that locality's circuit court.

C. Federal — FBI Identity History Summary

- For records that may extend beyond Virginia, the FBI fingerprint-based Identity History Summary is the federal equivalent; Virginia relief reaches Virginia records only.

VERIFY BEFORE RELYING

State Police request methods and fees, and the rollout of the sealing system's automatic processing, can change — especially around the July 1, 2026 launch. The agent should verify the current VSP request process and fee, and whether automatic sealing is operational, at the time of advising.

AGENT GUIDANCE

Frame the Virginia State Police (CCRE) criminal-history request as step one — it fixes the disposition (which decides expungement vs. sealing) and the dates. Direct users to the circuit court clerk of the locality for the case file and filing.

10. Sample petitions and completed examples

Virginia relief is filed on a circuit-court petition. The examples below show structure and key recitals for expungement (now) and sealing (from 7/1/2026). Names, dates, and identifiers are fictional and illustrative.

Example A — Petition for Expungement (§ 19.2-392.2), non-conviction

VIRGINIA: IN THE CIRCUIT COURT OF THE CITY OF RICHMOND
IN RE: ANDRE L. CARTER Case No. CL26-001234

PETITION FOR EXPUNGEMENT OF POLICE AND COURT RECORDS
(Va. Code 19.2-392.2)

1. Petitioner: Andre L. Carter; DOB 07/22/1992; SSN XXX-XX-4471.
2. On 03/02/2024 petitioner was charged in the General District Court of the City of Richmond with petit larceny (Va. Code 18.2-96).
3. Disposition: the charge was NOLLE PROSEQUI on 06/15/2024 (a non-conviction).
4. Petitioner has been fingerprinted; the Virginia State Police will forward this petition, the fingerprints, and a copy of petitioner's criminal history record to this Court.
5. The continued existence of the records causes or may cause circumstances constituting a manifest injustice to petitioner. WHEREFORE petitioner requests entry of an Order of Expungement of all police and court records relating to this charge, directing the State Police to expunge the record. (Copy served on the Commonwealth's Attorney.)

Example B — Petition for Sealing (§ 19.2-392.12), conviction (from 7/1/2026)

VIRGINIA: IN THE CIRCUIT COURT OF THE CITY OF RICHMOND
IN RE: MARIA S. DELGADO Case No. CL26-005678

PETITION FOR SEALING OF CRIMINAL HISTORY RECORD INFORMATION
AND COURT RECORDS (Va. Code 19.2-392.12) [eff. 7/1/2026]

1. Petitioner: Maria S. Delgado; DOB 02/14/1995.
 2. On 04/10/2017 petitioner was convicted in this City of petit larceny (Va. Code 18.2-96), a misdemeanor eligible under 19.2-392.12.
 3. More than seven (7) years have passed since the conviction and petitioner has no new convictions (excluding traffic infractions) in that period.
 4. Felony-history bars satisfied: petitioner has never been convicted of a Class 1/2 or life felony, no Class 3/4 felony in 20 years, and no other felony in the last 10 years.
 5. The offense is not on the 19.2-392.12 exclusion list (not a DUI, sex, violent, firearm, domestic, protective-order, hate-crime, or other excluded offense).
 6. Petitioner also requests sealing of the related ancillary matter (a 2018 probation-violation) under 19.2-392.5.
- No court fees or costs are charged. WHEREFORE petitioner requests an Order sealing the conviction and ancillary matter.

Examples C & D — Automatic pathways (no filing, from 7/1/2026)**C. AUTOMATIC SEALING (§ 19.2-392.7):**

A misdemeanor non-conviction, a marijuana-possession record, or one of the 9 enumerated misdemeanor convictions (7 years conviction-free) is sealed AUTOMATICALLY by the State Police and courts -- no petition. Traffic infractions auto-seal after 11 years.

D. DEFERRED-DISMISSAL TRAP:

A first-offender drug dismissal under 18.2-251 is NOT 'otherwise dismissed,' so it cannot be EXPUNGED now (Dotson). From 7/1/2026 it may be SEALED by petition under 19.2-392.12 instead.

Proposed Order

Each petition is accompanied by a proposed Order. The Order of Expungement directs the Virginia State Police and the court clerk to expunge the police and court records of the non-conviction; the Order of Sealing (from 7/1/2026) directs that the records be sealed and forwards an electronic notification to the State Police, with the order itself maintained under seal.

This reference is an internal training and retrieval aid for the Wilma assistant. It summarizes Virginia statutes and common practice and is not legal advice. Virginia's comprehensive sealing system (Chapter 23.2) does not take effect until July 1, 2026, and was amended in 2025 (SB 1466 / HB 2723); until then only § 19.2-392.2 expungement of non-convictions is available. The agent must verify the current effective status, the eligible/excluded offense lists, the felony-history bars, the official forms, and State Police request processes before relying on any rule here.